

closed, inquired Timios whether the HELOC was paid off. Plaintiff Kelli Michael was copied on that email and replied to Shane Hale stating: “Email from Title show they remove the lien.” (UMF No. 16.) Timios also replied to that email stating: “We received a cancellation of debt from Keli and my title team made the decision to remove it.” (UMF No. 17.)

Here, Caliber sufficiently shows it made no representation of title regarding the HELOC and that any reliance by Plaintiffs were not justified. It has been held that one’s “hopeful expectations” do not constitute justifiable reliance. (*Kruse v. Bank of America* (1988) 202 Cal.App.3d 38, 54-55 [borrower’s hopeful expectation that lender would later grant a long-term loan was not sufficient evidence to establish the element of justifiable reliance].) “[A] party plaintiff’s misguided belief or guileless action in relying on a statement on which no reasonable person would rely is not justifiable reliance.” (*Ibid.*) Here, Plaintiffs’ hopeful expectation that elimination of the HELOC lien as an exception in a title report constitutes a release of encumbrance from the property cannot amount to the necessary justifiable reliance.

Once the burden shifted, Plaintiffs fail to present controverting evidence raising a triable issue regarding the essential elements of their claim for negligent misrepresentation because the motion is unopposed.

c. Declaratory relief.

As Caliber argues, the declaratory relief cause of action is derivative of the causes of action for negligence and negligent misrepresentation as Plaintiffs allege no other facts in support of their declaratory relief cause of action. “[A] request for declaratory relief will not create a cause of action that otherwise does not exist, [Citation]” but, rather, “an actual present controversy must be pleaded specifically and the facts of the respective claims concerning the [underlying] subject must be given.” (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 80, quoting 5 Witkin, Cal. Procedure (4th ed. 1997) Pleading, § 819, p. 275, internal quotations omitted, brackets in original.)

Based on the foregoing, **summary judgment is granted.**

The court notes that the reinstatement of the appeal of the court’s October 8, 2025 order granting Defendants Timios, Inc. and Timios Title’s summary judgment motion does not impose a stay on co-Defendant Caliber Home Loans, Inc.’s summary judgment motion as the disposition of causes of action against Caliber involves separate facts and evidence and the disposition against Caliber does not affect the causes of action against Timios, Inc. and Timios Title. (See Code Civ. Proc., § 916, subd. (a); *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 186; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1428.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ VS MERCEDES-BENZ USA	MOTION PURSUANT TO CODE CIV. PROC § 473(B) FOR RELIEF FOR FAILURE TO FILE AN OPPOSITION TO DEFENDANT’S DEMURRER TO COMPLAINT

Tentative Ruling:

The court grants relief pursuant to Code of Civil Procedure section 473, subdivision (b), to allow Plaintiff to file an opposition to Defendant’s demurrer.

A hearing on the demurrer is set for August 26, 2026, at 8:30 a.m.

Plaintiff must file an opposition and accompanying documents within ten (10) days of this order. The proposed opposition and accompanying documents filed on July 23, 2026 does not constitute filing of the requisite opposition and accompanying documents. Therefore, any reply to the opposition must be filed no later than five (5) court days before the hearing, i.e. by August 19, 2026.